Checklist

Before you file the attached application with the Landlord and Tenant Board (LTB), make sure you can answer **YES** to each of the following questions. If not, your application may be dismissed, which means you may have to start over.

☐ **Did the tenant move out of the rental unit on or after September 1, 2021?**

You cannot file this application if the tenant is still living in the rental unit or moved out before September 1, 2021.

☐ **Did the tenant move out of the rental unit within the last year?**

You cannot file this application if the former tenant moved out more than one year ago.

☐ **Did you name each former tenant of the rental unit?**

☐ **Did you fill in the complete address of the rental unit?**

You must provide the full address, including the postal code. Be sure you have correctly identified the rental unit.

☐ **Did you fill in the complete current address for each former tenant named in the application, if known?**

You can leave this blank if you do not know the former tenant's current address. However, after the LTB issues a Notice of Hearing you must give the former tenant a copy of this application and the Notice of Hearing at least 30 days before the hearing. See the instructions for more information about how you can give these documents to the former tenant.

☐ **Did you select the applicable reason(s) and provide all of the requested details?**

☐ **Did you check your math?**

Make sure you have correctly calculated the total amounts owing. Check the calculation across the rows of each table and then check the total amounts in the final columns.

Also check to be sure that the amount in the box on page 1 matches the total amount owing in Part 5.

☐ **Did you date and sign the application on page 7?**

If your application is not signed and dated, the LTB will not accept it.

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Important Information for Landlords

Use this application if the tenant has already moved out of the rental unit and you want to apply for an order to:

- collect rent arrears and/or compensation that you believe the former tenant owes you,
- collect an amount for charges related to NSF cheques the former tenant gave you, if you are also applying for rent arrears,
- collect costs you believe the former tenant owes you for unpaid utility bills,
- collect money you believe the former tenant owes you for damaging the rental unit,
- collect costs that you incurred because the former tenant or someone else visiting or living in the rental unit substantially interfered with your reasonable enjoyment or lawful right, privilege or interest.

You must file this application no later than one year after the former tenant moved out of the rental unit.

Instructions for this application are available at the Landlord and Tenant Board (LTB) website at tribunalsontario.ca/ltb.

1. Select your language preference (French or English). If you require accommodation complete a Tribunals Ontario Accommodation Request form.

2. Complete this application.
   - **Part 1** asks for information about the address of the rental unit covered by this application.
   - **Part 2** requires you to fill in the total amount you believe the former tenant owes you.
   - **Part 3** asks for general information about:
     - you (your name, etc),
     - the date the former tenant moved out of the rental unit,
     - the former tenant's current address,
     - your email address and the former tenant's email address, if known.
   - **Part 4** requires you to:
     - select and explain the reason(s) for your application, and
     - show how you calculated the amount you believe the former tenant owes you.
   - **Part 5** asks you to show how you calculated the total amount you believe the former tenant owes you.
   - **Part 6** requires your signature or that of your representative, and, if you are being represented, your representative's contact information.

3. Complete the checklist that is attached to the application to make sure you have completed the application form correctly. Do not include the checklist when you file the application.

4. File all pages of the application with the LTB (not including this page) no more than **365 days** after the day the former tenant moved out of the rental unit. The LTB will send you a notice of hearing showing the time and method of your hearing.

5. Pay the application fee of **$201** to the LTB at the same time as you file the application. The LTB will not process your application unless you pay the fee. If you mail or courier the application, you can pay the filing fee by money order, certified cheque, or by credit card. You can't pay with cash or debit card if you file by mail or courier. If you cannot afford the fee, you can submit a Fee Waiver Request.

6. Give each of the former tenants named in this application a separate copy of the application and the Notice of Hearing issued by the LTB. You must do this at least **30 days** before the hearing using one of the methods listed in the Certificate of Service – Former Tenant. If you cannot use one of these methods, you can ask the LTB for permission to serve the documents in a different way by submitting a Request to Use Alternative Service. You must submit this request at least 40 days before the hearing.

7. File a completed Certificate of Service – Former Tenant with the LTB setting out how and when you gave each former tenant a copy of this application and the Notice of Hearing. You must file the completed Certificate of Service with the LTB at least **20 days** before the hearing. If the LTB does not receive the Certificate of Service by this deadline it may cancel your hearing and close your application. Your filing fee will not be refunded if this happens.

8. Contact the LTB if you have any questions or need more information.

   416-645-8080
   1-888-332-3234 (toll free)
   tribunalsontario.ca/LTB

Tribunals Ontario
Landlord and Tenant Board

Application to Collect Money
a Former Tenant Owes
Form L10
Disponible en français

Language Preference

The LTB offers services in both French and English.

What is your preferred language? ◯ French ◯ English

If you are the respondent and want French Language Services, complete the Request for French Language Services form and email it to LTB@ontario.ca, or send the form by mail to the LTB. To see the list of all LTB office addresses, visit tribunalsontario.ca/ltb/contact/.

Accommodation

Accommodations are arrangements to allow everyone, regardless of their abilities, to participate fully in the LTB's process.

If you require accommodation, complete the Accommodation Request form and email it to LTB@ontario.ca, or send the form by mail to the LTB. To see the list of all LTB office addresses, visit tribunalsontario.ca/ltb/contact/.

Read the instructions carefully before completing this form. Print or type in capital letters.

Part 1: Address of the Rental Unit Covered by This Application

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province:	Postal Code:
	ON	

Part 2: Total Amount the Former Tenant Owes

The following information is from your landlord

I am applying to the Landlord and Tenant Board for an order:

- **to collect the money you owe me.**

I believe that you owe me a total of $ _____ .

This amount includes the filing fee for this application. To see how I calculated this amount, go to page 6.

OFFICE USE ONLY:

File Number:

Delivery Method:

◯ In Person ◯ Mail ◯ Courier ◯ Email ◯ Service Ontario Center FL:

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The following information is from the Landlord and Tenant Board

IF YOU AGREE with the amount the landlord claims you owe:

If you agree with the amount the landlord claims you owe, you can pay everything you owe or work out a payment plan. However, read the options before you decide. You may want to get legal advice first.

OPTION 1: Pay everything you owe

If you pay all the arrears and costs you owe plus the landlord's filing fee before the LTB issues an order about this application, be sure to get a receipt. Go to the hearing, where you can tell the Board what you've paid. If the landlord gave you receipts for amounts you paid, bring them to the hearing.

OPTION 2: Work out a payment plan

If you cannot pay everything you owe right now, you can talk to your landlord to see if they are willing to work out a payment plan. If you and the landlord agree to a payment plan, go to the hearing where you can explain the payment plan to the LTB.

If you and the landlord want to work out a payment plan but cannot agree on the terms of the agreement, an LTB Dispute Resolution Officer can help by providing mediation services. If you and the landlord agree to mediation services, contact the LTB by email at LTB@ontario.ca or access your file on the Tribunals Ontario Portal (tribunalsontario.ca/ltb/tribunals-ontario-portal/), select the Online Dispute Resolution (ODR) tab, then select ***Request for Mediation***. Requests for mediation should be made at least two weeks before your hearing.

IF YOU DO NOT AGREE with the amount the landlord claims you owe:

Talk to your landlord to see if both of you can agree on a different amount. You may want to get legal advice first.

If you and your landlord agree on a different amount

If you and your landlord can agree on the amount you owe, read the options above called **Pay everything you owe** and **Work out a payment plan**. You can follow one of these options, but use the different amount you and your landlord have agreed on. You should go to the hearing and tell the Member about your agreement.

Go to the hearing

The date, time and method of the hearing are shown on the Notice of Hearing that is attached to this application.

At the hearing, the landlord will have to prove the claims they made in the application. You will have an opportunity to respond to the landlord's claims. For example, you can explain why you disagree with the amount the landlord claimed you owe. You can also ask the LTB for more time to pay the money you owe. If you have paid everything you owe before the hearing, or if you and your landlord have worked out a payment plan, you can tell the LTB at the hearing.

If the application claims you owe rent arrears, you can also raise other issues such as maintenance problems or harassment. If you plan to raise other issues, you must:

- give the landlord and the LTB a written description of each issue at least **seven** days before the hearing, and
- pay the **landlord** at least half of any rent arrears that are claimed in the landlord's application at least **seven** days before the hearing. **You cannot pay this amount to the LTB in trust.** Be sure to get a receipt for any amounts you pay to the landlord.

If you intend to raise other issues at the hearing, you can use the LTB form "Issues a Tenant Intends to Raise at a Rent Arrears Hearing" which is on the LTB website (tribunalsontario.ca/ltb/forms-filing-and-fees/). Include details such as a description of the issue, when it began, and when you told your landlord.

You must also give a copy of all your evidence to support your case to the landlord and the LTB at least seven days before the hearing. If the LTB accepts your evidence, the LTB may order the landlord to pay you money. If you owe arrears of rent, this may reduce the amount you owe.

After the hearing

The LTB will make a decision and issue an order that will be sent to you by email or mail at your current address. The order will tell you what the LTB decided. You should read the order to be sure it is correct and that you understand it.

For more information:

You can contact the Landlord and Tenant Board at **416-645-8080** or toll-free at **1-888-332-3234** or visit the LTB's website at tribunalsontario.ca/LTB.

Part 3: General Information

Landlord's Name and Address

If there is more than 1 landlord, complete a *Schedule of Parties* form and file it with this application.

First Name:	Last Name:

Company Name (if applicable):

Email Address:	Phone Number:

Mailing Address

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province:	Postal Code:

What is the best way to communicate with you? ◯ Mail ◯ Email *

* If you check Email, you consent to receive documents and correspondence from the Landlord and Tenant Board by email. Providing consent to email means that the LTB will communicate and send documents by email to all of the applicants. Do not check the Email box if there are multiple applicants and some want to receive documents by regular mail instead of email.

The former tenant moved out of the rental unit on _____ (dd/mm/yyyy).

Note: The tenant must have moved out of the rental unit on or after September 1, 2021. You must file this application no later than one year from the date the former tenant moved out.

Former Tenant Names and Current Address

If there are more than 2 tenants, complete a *Schedule of Parties* form and file it with this application.

Tenant 1 First Name:	Tenant 1 Last Name:

Tenant 1 Email Address:	Tenant 1 Phone Number:

Tenant 2 First Name:	Tenant 2 Last Name:

Tenant 2 Email Address:	Tenant 2 Phone Number:

Mailing Address (if it is different from the address of the rental unit)

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province:	Postal Code:

Part 4: Applying to Collect Money the Former Tenant May Owe You

Shade the box(es) completely next to the reason(s) for which you believe the former tenant owes you money. Provide the additional information depending on your reason for applying.

☐ **Reason 1:** The former tenant owes:

- rent that was not paid during the tenancy, and/or
- compensation for each day they remained in the rental unit after the tenancy was terminated by a termination or an agreement to terminate the tenancy.

The total rent and compensation the former tenant owes is: $ _____

I have calculated the amount of rent the tenant owes me as follows:

Rent Period From: *(dd/mm/yyyy)*	Rent Period To: *(dd/mm/yyyy)*	Rent Charged $	Rent Paid $	Rent Owing $
			Total Rent Owing:	$

The amount of rent currently on deposit: $ _____

The date the rent deposit was collected: _____ *(dd/mm/yyyy)*

The last rental period for which the tenant was paid interest on the rent deposit: _____ *(dd/mm/yyyy)* to _____ *(dd/mm/yyyy)*

☐ **Reason 2:** I have bank or administration charges for NSF cheques the former tenant gave me during the tenancy. You must also be applying for Reason 1 to make this claim.

Note: The maximum administration charge you can claim for each cheque is $20.00.

The total amount former tenant owes for NSF cheques is: $ _____

I have calculated the amount the former tenant owes me for NSF cheques as follows:

Cheque Amount $	Date of Cheque *(dd/mm/yyyy)*	Date NSF Charge Incurred *(dd/mm/yyyy)*	Bank Charge for NSF Cheque $	Landlord's Administration Charge $	Total Charge $
				Total NSF Related Charges Owing:	$

Attach additional sheets if necessary.

☐ **Reason 3:** The former tenant did not pay utility costs (utilities means heat, electricity and water) that they were required to pay under the terms of the tenancy agreement while they were living in the rental unit.

The total reasonable out-of-pocket expenses I have incurred or will incur as a result of the former tenant's failure to pay utility costs are: $ _____

I have calculated the amount the former tenant owes me for utility costs as follows:

Date of Utility Bill (dd/mm/yyyy)	Period Covered by Utility Bill From (dd/mm/yyyy)	To (dd/mm/yyyy)	Total Bill Amount $	Amount Paid by Tenant $	Amount Owing by Tenant $
Name of Utility Provider 1:					
Name of Utility Provider 2:					
Name of Utility Provider 3:					
				Total:	$

Attach additional sheets if necessary.

Provide copies of the bills to the tenant and the LTB by the deadline in the Notice of Hearing or LTB Rule of Procedure 19.

Add any necessary additional information about each utility expense you are claiming.

☐ **Reason 4:** The former tenant or someone else visiting or living in the rental unit willfully or negligently caused damage to the rental unit or residential complex. The former tenant must pay the reasonable costs necessary to repair or replace the damaged property.

The reasonable costs I have incurred or will incur to repair or replace the damaged property is: $ _____

Please explain: What were the damages to the property? How did you calculate the costs you are claiming to repair or replace the damaged property?

☐ **Reason 5:** The former tenant or someone else visiting or living in the rental unit substantially interfered with landlord's reasonable enjoyment or lawful right, privilege or interest. The former tenant must pay the reasonable out-of-pocket expenses I incurred as a result of this conduct.

Note: Do not select this reason if former tenant caused damage to the rental unit or residential complex or did not pay utility bills.

The reasonable costs I have incurred are: $ _____

Please explain: How did the former tenant or someone else visiting or living in the rental unit substantially interfered with your reasonable enjoyment or lawful right, privilege or interest? Provide details about your expenses and how they are connected to this conduct.

Attach additional sheets if necessary.

Part 5: Total Amount Owing

Total rent and compensation owing: $ _____
(from Part 4, Reason 1)

Total NSF charges owing: $ _____
(from Part 4, Reason 2)

Total utility costs owing: $ _____
(from Part 4, Reason 3)

Total costs for damages owing: $ _____
(from Part 4, Reason 4)

Total costs relating to substantial interference owing: $ _____
(from Part 4, Reason 5)

Application Fee: $ _____

Total: **$** _____

Part 6: Signature

Landlord / Representative's Signature

Signature	Date *(dd/mm/yyyy)*

Who has signed the application? Shade the circle next to your answer.

◯ Landlord ◯ Legal Representative

Information About the Legal Representative

First Name:	Last Name:

Law Society Number:	Company Name (if applicable):

Email Address (The LTB will use this email address to communicate with you):

Day Phone Number:	Evening Phone Number:

Mailing Address

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province:	Postal Code:

Collecting Personal Information

The Landlord and Tenant Board has the right to collect the information requested on this form to resolve your application under section 185 of the *Residential Tenancies Act, 2006*. After you file the form, all information related to the proceeding may become publicly available in a tribunal decision, order or other document, in accordance with Tribunals Ontario's Access to Records Policy and the *Tribunal Adjudicative Records Act, 2019*. Parties wanting records or information to remain confidential must seek a confidentiality order from the adjudicator. If you have questions about confidentiality orders or access to records, please contact us by email at LTB@ontario.ca or our Contact Center at **416-645-8080** or **1-888-332-3234** (toll free).

Important Information from the Landlord and Tenant Board

1. It is an offence under the *Residential Tenancies Act, 2006* to file false or misleading information with the Landlord and Tenant Board.
2. The LTB can order either the landlord or the tenant to pay the other's costs related to the application.
3. The LTB has *Rules of Procedure* that set out rules related to the application process and *Interpretation Guidelines* that explain how the LTB might decide specific issues that could come up in an application. You can read the *Rules* and *Guidelines* on the LTB website at tribunalsontario.ca/ltb.

Payment Information Form

Disponible en français

Payment Method

Select how you are paying the application fee:

☐ Money Order ☐ Certified Cheque

Money orders and certified cheques must be made payable to the "Minister of Finance".

☐ Credit Card

If you are paying by credit card and filing your application by mail or courier, you must complete the Credit Card Payment Form and submit it with your application.